

St vs . Kabir Singh & Ors. on 17 July, 2023

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IN THE COURT OF MS. AISHWARYA SHARMA,
METROPOLITAN MAGISTRATE-01, DWARKA COURTS, DELHI

FIR No. 278/2019
PS Palam Village
U/S : 33 Delhi Excise Act
State v Kabir Singh

CNR No : 1716/20
Date of Institution: : 05.03.2020
Name of the Complainant : Ct. Banwari Lal No. 1098
PS Palam Village,
New Delhi.

Name and Parentage of accused : 1. Kabir Singh
S/O Sh. Lala Singh

2. Priyanjan @Ajay
S/O Sh. Vijay Singh

Charge framed against accused : U/S 33 Delhi Excise Act
Plea of accused : Pleaded not guilty
Final Order : Acquitted
Date of reserve for orders : 08.07.2023
Date for announcing the orders : 17.07.2023

JUDGMENT

1. The accused persons are facing trial for offences U/S 33 Delhi Excise Act. The genesis of the prosecution story is that on 21.07.2019 at about 11:20 PM in a lane in front of House No. A-22, JJ Colony, Sector 7 Dwarka, New Delhi, the accused persons were found in possession of 192 quarter bottles of Impact Grain Whisky for sale in Haryana. The criminal law was set into motion by registration of FIR against the accused and investigation into the case began.

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After completion of the investigation, the present charge-sheet was filed for conducting trial of the accused persons for the alleged offences.

2. After taking cognizance of the offences, the copies of charge-sheet were supplied to accused persons in compliance of section 207 Cr.P.C. The arguments on charges were heard and charge for offence U/S 33 Delhi Excise Act were framed against accused persons. The accused persons pleaded not guilty and claimed trial. Thereafter, prosecution evidence was led.

3. In order to prove allegations against accused, prosecution has examined two prosecution witnesses.

4. The proceedings U/S 294 Cr.P.C. were conducted wherein accused persons admitted the factum of registration of FIR, DD No., Road certificate, Chemical Examiner report on record. Pursuant the admission made by accused of these documents, witnesses at Sr. No. 3 & 6 were dropped from the list of witness. Further, on 08.06.2023, at request of Ld. APP for State, PW HC Vikram was dropped from the list of witnesses.

5. Ld. APP for the State has argued that prosecution witnesses have supported the prosecution case and their testimony has remained unrebutted. It has been further argued that on the combined reading of the testimony of all the prosecution witnesses, offence U/S33 of Delhi Excise Act has been proved beyond doubt.

6. Per contra, Ld. Counsel for accused persons stated that there is no legally sustainable evidence against the accused persons and that the accused have been falsely implicated by the police officials and the recovery of illicit liquor has been planted upon them. Arguing further, Ld. counsel has inter-alia submitted that no public witnesses were joined by the police officials during investigation. It is further argued that due to the lacunae and incoherency in St Vs. Kabir Singh & Ors.

the story of the prosecution, accused persons be given the benefit of doubt and is therefore, entitled to be acquitted.

7. Prior to delving into the contentions raised by the prosecution and defence, let us discuss the testimonies of the material prosecution witnesses in brief.

8. PW-1 HC Banwari Lal who is the complainant, deposed that On 21.07.2019, he was posted as Constable at PS Palam Village and he along with Ct. Vikram were on beat patrolling on foot in the area of JJ Colony Sector 7 Dwarka and at about 11:20 PM, they reached near H No. A22, JJ Colony Sector 7 Dwarka and saw that two persons were coming from the side of the said house and were having sack on their shoulder and on seeing them, they kept their sacks on the road and tried to flee away from the spot. He stated that they managed to apprehend one accused namely Kabir and other accused namely Ajay managed to flee away from the spot and sacks were checked and both the sacks were found containing illicit liquor. He further deposed that he shared the information with DO PS Palam Village and after some time, ASI IO Manohar Singh reached at the spot and accused and both sacks were handed over to IO who checked the sacks and each sack was found containing 2 cartons (Total 4 cartons) and each carton was found containing 48 quarter bottles of Impact Green Whisky. He stated that one quarter bottle each from all the cartons were taken out as sample bottles and their mouth were tied with white cloth and thereafter, they were sealed with the seal of MS and remaining case property was kept in their respective cartons only and two cartons each were put in one sack and therefore, 2 sacks were used and thereafter, both sacks were also sealed with the seal of MS. He stated that the seal was handed over to Ct. Vikram after use. He deposed that IO seized the case property vide seizure memo Ex. PW1/A and IO recorded his statement St Vs. Kabir Singh & Ors.

EX.PW1/B. He stated that IO prepared rukka and handed over the same to him for registration of FIR and he went to the P.S. and after getting the FIR registered, returned to the spot and handed over the copy of the FIR & Rukka to IO. He further deposed that IO recorded disclosure statement of accused Kabir vide memo EX. PW1/C and then IO arrested the accused vide arrest memo Ex.PW1/D and conducted personal search of the accused vide memo EX. PW1/E. This witness further deposed stated on 31.07.2019, he again joined the investigation in the present matter and he along with IO ASI Manohar left the P.S. for the search of another accused in the present case and while searching that accused, they reached JJ Colony Sector 7 Dwarka, and another accused was found present in front of his house in JJ Colony. This witness further deposed that IO then interrogated the accused Priyanjay @ Ajay and recorded his disclosure statement Ex. PW2/D. He stated that IO arrested and conducted personal search of accused Priyanjay @ Ajay vide memo Ex.PW2/E & Ex.PW2/F and IO prepared the pointing out memo at the instance of accused Ex. PW2/G. Thereafter, they returned to the PS. This witness also identified both the accused persons and sample bottle of case property Ex. P2 in the court as the remaining case property was destroyed vide the destruction order No. F.CONF./2020/5005-06 dated 05.10.2020.

9. PW-2 ASI Manohar Lal is the Investigating Officer of this case, who deposed that on 21.07.2019, he was posted as ASI at PS Palam Village and on that day on receipt of DD no.70 B, regarding recovery of illicit liquor in front of H. No. A-22, JJ Colony, Sector 7 Dwarka, Delhi, he reached at the spot. He stated that at the spot he met Ct. Banwari Lal, Ct. Vikram and accused alongwith the case property and accused and the case property was handed over to him. Thereafter, this witness narrated the manner in which investigation is conducted by him and the same is not being reproduced to St Vs. Kabir Singh & Ors.

avoid repetition as the manner of investigation has already been narrated by PW-1 HC Banwari Lal. This witness also identified both the accused persons and sample bottle of case property Ex. P2 in the court as the remaining case property was destroyed vide the destruction order No. F.CONF./2020/5005-06 dated 05.10.2020.

Statement of accused and defence

10. After completion of prosecution evidence, all the incriminating evidences were put to accused persons in their Statements recorded U/S 281 r/w 313 Cr.P.C on 08.07.2023 wherein both the accused persons stated that they have been falsely implicated in the present case and pleaded that they are innocent, however, they preferred not to lead evidence in defence. Thereafter, the matter was listed for final arguments.

Appreciation of evidence in the light of legal propositions

11. In order to sustain conviction U/S 33 Delhi Excise Act, the prosecution is required to prove the following ingredients:

- i) The accused was found in the possession of the illicit liquor; and

ii) He was possessing the same without any license/permit.

12. It is a cardinal principle of criminal jurisprudence that an accused is presumed to be innocent and, therefore, the burden lies on the prosecution to prove the guilt of the accused beyond reasonable doubt. The prosecution is under a legal obligation to prove each and every ingredient of the offence beyond any doubt, unless otherwise so provided by any statute. This general burden never shifts and it always rests on the prosecution.

13. However, sub section (1) of section 52 of Delhi Excise Act, 2009 enunciates that in case of prosecution u/s 33, it shall be presumed, until the contrary is proved, that the accused has committed the offence punishable under that section in respect of any intoxicant, still, utensil, implement or apparatus for St Vs. Kabir Singh & Ors.

the possession of which he is unable to account satisfactorily. Relevant extract of the said provision is reproduced below:

"...Presumption as to commission of offence in certain cases. -

(1) In prosecution under Section 33, it shall be presumed, until the contrary is proved, that the accused person has committed the offence punishable under that section in respect of any intoxicant, still, utensil, implement or apparatus, for the possession of which he is unable to account satisfactorily. (2) Where any animal, vessel, cart or other vehicle is used in the commission of an offence under this Act, and is liable to confiscation, the owner thereof shall be deemed to be guilty of such offence and such owner shall be liable to be proceeded against and punished accordingly, unless he satisfies the court that he had exercised due care in the prevention of the commission of such an offence..."

But this presumption is rebuttable and accused can rebut the same by either referring to the prosecution's evidence or by adducing defence evidence. Also, it should be noted that the words "for the possession of which he is unable to account satisfactorily" used in Section 52(1) of the Delhi Excise Act clearly reveal that as a pre-requisite for the presumption under the aforesaid provision being raised against the accused, it is imperative for the prosecution to successfully establish the recovery of the said alleged articles from the possession of the accused. It is only after the prosecution has proved the possession of the alleged articles by the accused that the accused can be called upon to account for the same.

14. However, for the reasons mentioned hereinafter the prosecution has failed to establish beyond reasonable doubt that the accused persons were found in possession of the alleged illicit liquor. Accordingly, no presumption as provided for under Section 52 of the Delhi Excise Act can be raised against the accused persons in the present case. Hence, they deserve to be acquitted.

(i) Non-examination of independent public witnesses

15. During the final arguments, Ld. Counsel for the accused persons submitted St Vs. Kabir Singh & Ors.

that the prosecution did not examine even a single public witness to prove the recovery of illicit liquor from the possession. The only recovery witness PW-1 HC Banwari Lal is the police official.

16. It is a well settled proposition that non-joining of public witness shrouds doubt over the fairness of the investigation by police. Section 100(4) of the Cr.PC also casts a statutory duty on an official conducting search to join two respectable persons of the society. Same has not been done in the present case. This casts a doubt on the fairness of the investigation.

17. From the overall testimony of the witnesses, it appears that no sincere efforts, have been made to join the public persons in the investigation. The witnesses examined by the prosecution are police witness. Not even a single public witness was examined by the prosecution nor joined in the investigation and no plausible reason could be put forward by the prosecution witnesses that for what reason they were unable to gather support from public or independent witnesses to establish the guilt of the accused. Reference can be taken from the decision of the Hon'ble Delhi High Court in the case of Pawan Kumar v. The Delhi Administration, 1989 Cri.L.J. 127.

18. In the instant case, as per the testimonies of PW 1 and 2 and also from the perusal of site plan EX. PW2/C, it surfaces that the alleged recovery was made from accused persons from in front of H No. A-22, J J Colony, Sector 7 Dwarka, Delhi which is a well inhabited residential area. Further, both the Pws have also admitted that the public persons were also present at the spot but no sincere efforts were made by the police to associate them during the search and seizure proceedings, which makes the credibility of proceedings doubtful. None of the witnesses have stated anything about the efforts which they made to associate any public person to join the investigation and admittedly no notice was even served upon public persons and no explanation St Vs. Kabir Singh & Ors.

tendered by the prosecution witnesses regarding the same. Further, neither the details of those public persons have been brought on record nor any legal action was taken against those persons under relevant sections of law who had declined to assist the police in investigation. If the public persons were really present at the spot, then the police officials should have made endeavor to get them join the investigation. They should have issued notice asking them to join the investigation. On their refusal, necessary action as per law could have been taken against them.

19. The failure on the part of the police personnel could only suggest that they were not interested in joining the public persons in the police proceedings. Failure on the part of the police officials to make sincere effort to join public witnesses for the proceedings when they may be available creates reasonable doubt in the prosecution story. Reference can be taken from the decision of Anoop Joshi Vs. State 1992 (2) C.C. Cases 314 (HC), Hon'ble High Court of Delhi has observed as under:

"...It is repeatedly laid down by this Court that in such cases it should be shown by the police that sincere efforts have been made to join independent witnesses. In the present case, it is evident that no such sincere efforts have been made, particularly

when we find that shops were open and one or two shop keepers could have been persuaded to join the raiding party to witness the recovery being made from the appellant. In case any of the shopkeepers had declined to join the raiding party, the police could have later on taken legal action against such shopkeepers because they could not have escaped the rigours of law while declining to perform their legal duty to assist the police in investigation as a citizen, which is an offence under the IPC..."

20.While the testimony of the police officials cannot be discarded away merely because of the fact that no public witnesses were not examined, however, their testimonies have to be scrutinised in more detail. If it is found the police officials during the course of investigation did not even make endeavour to St Vs. Kabir Singh & Ors.

ask the public witnesses to join the investigation, did not even ask their names and details etc. then it would cast a very serious doubt on the testimonies of the police officials. At this stage, reference can be taken from the decision of the Hon'ble Supreme Court in the case of Tahir v. State (Delhi) [(1996) 3 SCC 338], dealing with a similar question, the Hon'ble Apex Court held interalia the following:

"...In our opinion no infirmity attaches to the testimony of the police officials, merely because they belong to the police force and there is no rule of law or evidence which lays down that conviction cannot be recorded on the evidence of the police officials, if found reliable, unless corroborated by some independent evidence. The Rule of Prudence, however, only requires a more careful scrutiny of their evidence, since they can be said to be interested in the result of the case projected by them. Where the evidence of the police officials, after careful scrutiny, inspires confidence and is found to be trustworthy and reliable, it can form basis of conviction and the absence of some independent witness of the locality to lend corroboration to their evidence, does not in any way affect the creditworthiness of the prosecution case. The obvious result of the above discussion is that the statement of a police officer can be relied upon and even form the basis of conviction when it is reliable, trustworthy and preferably corroborated by other evidence on record..."

21.The requirement of the police officials to make endeavour to ask the public witnesses to join the proceedings was discussed by the Hon'ble Supreme Court in the case of Sahib Singh vs. State of Punjab AIR 1997 SC 2417, wherein it interalia held the following:

"...In a given case it may so happen that no such person is available or, even if available, is not willing to be a party to such search. It may also be that after joining the search, such persons later on turn hostile. In any of these eventualities the evidence of the police officers who conducted the search cannot be disbelieved solely on the ground that no independent and respectable witness was examined to prove the search but if it is found -as in the present case -that no attempt was even made by the concerned police officer to join with him some persons of the locality who were admittedly available to witness the recovery, it would affect the weight of evidence of

the Police Officer, though not its admissibility"

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22. Therefore, in view of the abovementioned legal position as propounded by the judicial pronouncements, it becomes clear that while the testimony of the police officials cannot be discarded away forthwith in the absence of any public witnesses, however, it would be prudent to examine or scrutinise their testimonies more closely and should preferably be corroborated. Accused may be convicted on the basis of the testimonies of the police officials if their testimonies are found to be reliable and trustworthy.

23. Since all the witnesses are police personnel and the necessary safeguards in the investigation have not been followed by the IO, I am of the view that chances of false implication of accused under the provisions of Excise Act cannot be ruled out at the instance of the police.

(ii) Possibility of misuse of seal of the investigating officer

24. As per the testimonies of PWs, the sample of liquor and case property were sealed by the PW-2 IO ASI Manohar Singh with the seal of "MS" and after use the seal was handed over to Ct. Vikram after use. It should be noted that no handing over memo of the seal was prepared or brought on record. Further, the prosecution did not file any document on record to show that the said seal was eventually deposited by Ct. Vikram in malkhana. There is no explanation of the fact as to why IO did not make any efforts to handover the sample seal to any public persons/independent witnesses despite their availability on the spot, which further casts clouds of grave doubt on the story of prosecution. Further, the seal after use was directly handed over by the IO ASI Manohar Singh to Ct. Vikram who himself was the police official and was not given to any independent person, which strengthens the possibility of its misuse and makes the defence version qua plantation of recovery on accused, highly probable.

25. In the judgment titled Ramji Singh vs. State of Haryana 2007 (3) R.C.R. St Vs. Kabir Singh & Ors.

(Criminal) 452, the Hon'ble Punjab & Haryana High Court while discussing the purpose of giving seal to independent person has held the following:

"The very purpose of giving seal to an independent person is to avoid tampering of the case property. It is well settled that till the case property is not dispatched to the forensic science laboratory, the seal should not be available to the prosecuting agency and in the absence of such a safeguard the possibility of seal, contraband and the samples being tampered with cannot be ruled out."

26. Therefore, in view of the above, this creates further doubts in the case of prosecution as to whether the case property allegedly recovered from the accused has not been tampered with.

(iii) Doubtful Seizure Memo and Form M-29

27.A careful reading of the testimony of PW1 reflects that the IO had seized the sample bottles vide seizure memo Ex.PW1/A, filled in the form M 29 Ex. PW2/A and then recorded the statement of PW-1 Ct. Banwari Lal EX. PW1/B and thereafter, had prepared the rukka Ex. PW2/B and handed over the same to Ct. Banwari Lal, for registration of FIR. The narration of such a chronology of events leads to the irresistible conclusion that the seizure memo of the liquor and Form M-29 were prepared at the spot, prior to the rukka being sent to the police station for registration of the FIR and that the FIR was, therefore, admittedly registered after the preparation of these documents. Accordingly, it follows that the number of the FIR would have come to the knowledge of the investigating officer only after a copy of the FIR was brought to the spot by HC Banwari Lal. Thus, ordinarily, the FIR number should not find mention in the seizure memo which came into existence before registration of the FIR. However, quite surprisingly, perusal of seizure memo reflects the mentioning of the full particulars of the FIR thereupon, which fact has remained unexplained on behalf of the prosecution. It is not even the case that the same, on the face of it, appears to have been written in separate ink or at some left St Vs. Kabir Singh & Ors.

over space. Rather, on the seizure memos, it appears to have been recorded in same continuity, handwriting and ink as rest of the contents of these documents. No explanation from the prosecution is forthcoming as to how the FIR number surfaced on a documents which were prepared prior to the registration of the FIR. This fact casts a fatal doubt upon the case of prosecution.

28.At this stage, reference may be made to the decision of the Hon'ble High Court of Delhi in Lalit v. The Delhi Administration, 1989 Cri. L.J. 127, wherein it was observed in paragraph 5 as follows:

"....Learned counsel for the state concedes that immediately after the arrest of the accused, his personal search was effected and the memo Ex.PW11/D was prepared. Thereafter, the sketch plan of the knife was prepared in the presence of the witnesses. After that, the ruqa Ex.PW11/F was sent to the Police Station for the registration of the case on the basis of which the FIR, PW 11/G was recorded. The F.I.R. is numbered as 36, a copy of which was sent to the I.O. after its registration. It comes to that the number of F.I.R. 36 came to the knowledge of the I.O. after a copy of it was delivered to him at the spot by a constable. In the normal circumstances, the F.I.R. No. should not find mention in the recovery memo or the sketch plan which had come into existence before the registration of the case. However, from the perusal of the recovery memo, I find that the FIR is mentioned whereas the sketch plan does not show the number of the FIR. It is not explained as to how and under what circumstances the recovery memo came to bear the F.I.R. No. which had already come into existence before the registration of the case. These are few of the circumstances which create a doubt, in my mind, about the genuineness of the weapon of offence alleged to have been recovered from the accused."

29. Similarly, in paragraph 4 of Mohd. Hashim vs State, 82 (1999) DLT 375, the Hon'ble High Court of Delhi observed:

"...Surprisingly, the secret information (Ex. P.W. 7/A) received by the Sub- Inspector Narender Kumar Tyagi (P.W. 7), the notice under S. 50 of the Act (Ex. P.W. 5/A) alleged to have been served on the appellant, the seizure memo (Ex. P.W. 1/A) and the report submitted under S. 57 of the Act (Ex. P.W. 7/D) bear the number of the FIR (Ex. P.W. 4/B). The number of the FIR (Ex. P.W. St Vs. Kabir Singh & Ors.

4/B) given on the top of the aforesaid documents is in the same ink and in the same handwriting, which clearly indicates that these documents were prepared at the same time. The prosecution has not offered any explanation as to under what circumstances number of the FIR (Ex. P.W. 4/B) had appeared on the top of the aforesaid documents, which were allegedly prepared on the spot. This gives rise to two inferences that either the FIR (Ex. P.W. 4/B) was recorded prior to the alleged recovery of the contraband or number of the said FIR was inserted in these documents after its registration. In both the situations, it seriously reflects upon the veracity of the prosecution version and creates a good deal of doubt about recovery of the contraband in the manner alleged by the prosecution."

30. The aforesaid rulings of the Hon'ble High Court of Delhi squarely apply to the facts in the present case as well, which leads to only one of the either inference, that is, either the FIR was registered prior to the alleged recovery of the illicit liquor, or that the seizure memo was prepared later in point of time. In either of the scenarios, a dent is created in the version of the prosecution, the benefit of which must accrue to the accused.

(iv) Failure to prove the possession of alcohol by accused beyond permissible limits.

31. Perusal of record shows that the Excise Report EX. P5 was obtained qua 4 sample bottles (180 ml each bottle) only, whereby the presence of alcohol in the said sample bottles was confirmed. The presence of alcohol in the remaining allegedly recovered liquor bottles has not been thus, proved by the prosecution. Now, since the State has only found 4 bottles (720 ml litres of liquid), allegedly recovered from the accused persons, containing alcohol, an offence under section 33 of the Delhi Excise Act, 2009 cannot be said to have been made out as the same falls within the maximum permissible limit specified under Rule 20 of the Delhi Excise Rules, 2010. At this juncture, the ruling of the Hon'ble High Court of Karnataka, in its judgment titled as Nagesh S/O Ningaiah vs The State Of Karnataka, Criminal Revision St Vs. Kabir Singh & Ors.

Petition No.772 /2009, decided on 31 January, 2014, may be adverted to, wherein, while acquitting the accused of a similar offence, following observations were made:

"It is seen from the mahazar that out of 49,440 Whisky bottles, 15 Whisky bottles of 180 ml. each were sent for Chemical Analysis, and it is opined that there was presence of Ethyl Alcohol in all the bottles that were sent for Chemical Examination,

fit for consumption. Thus, the total quantity sent for Chemical Analysis is less than permitted quantity under law. We do not know the contents of the other bottles seized under a Panchanama. There is no evidence to show that all other bottles also contained alcohol. When the quantity found in the bottle sent for Chemical Examination is less than permitted limit and when there is no evidence regarding the contents of all other bottles seized under Panchanama, it cannot be said that the accused was in possession of the illicit liquor without pass or permit more than permitted quantity so as to constitute an offence. The unreported decision of this Court in W.P.No.17991/2011 (Excise), dated 28.02.2012, relied upon by the learned counsel for the petitioner is rightly applicable to the facts of this case.....In this case also the prosecution has failed to establish that the accused was in possession of liquor more than permitted quantity."

32. There is no gainsaying that if two reasonably probable and evenly balanced views of the evidence are possible, one must necessarily concede to the existence of a reasonable doubt. The aforementioned lacunas in the story of the prosecution render the version of the prosecution doubtful, leading to the irresistible conclusion that the burden of proving the guilt of the accused persons beyond reasonable doubt has not been discharged by the prosecution. Thus, this Court is of the opinion that the prosecution has failed to bring on record any cogent evidence in order to prove the commission of and guilt of the accused persons for offence U/S 33 of Delhi Excise Act beyond reasonable doubts, thus, entitling the accused persons to benefit of doubt and acquittal.

33. Accordingly, this Court hereby accords the benefit of doubt to the accused persons for the offence U/S 33 of Delhi Excise Act and holds the accused St Vs. Kabir Singh & Ors.

persons not guilty of commission of the said offence. Accused persons namely 1) Kabir Singh and 2) Priyanjan @ Ajay are thus, acquitted of the offence U/S 33 of Delhi Excise Act.

34. The bail bonds, if any furnished by accused persons at the time of commencement of trial stands cancelled. Surety, if any stands discharged. Documents, if any shall be returned to its rightful owner as per rules. Endorsement, if any stands canceled. Case property if any, shall be disposed off after expiration of period to assail this judgment and in case of appeal, as per the directions of Ld. Appellate Court.

Announced in the open court on
this day i.e. 17h July, 2023

(Aishwarya Sharma)
MM-01 South West District, Dwarka,
New Delhi/17.07.2023

It is certified that this judgment contains 17 pages and each page bears my signatures.

(Aishwarya Sharma) MM-01 South West District, Dwarka, New Delhi/17.07.2023 St Vs. Kabir Singh & Ors.